

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA-CGM (America), LLC

Respondent

**COMPLAINANT’S RESPONSE TO
RESPONDENT’S MOTION TO COMPEL
& COMPLAINANT’S CROSS MOTION**

CMA’s Motion to Compel

Since Counsel for CMA has included all of my responses and arguments to each of their requests, to avoid repetition, I will respectfully refer the Court to such as Counsel for CMA makes citations to these responses in her motion. I would just briefly mention my arguments on the issues of providing translation of documents during discovery and tax returns.

Certified translations will, of course, be used with any foreign language exhibits that may be used in the final brief, but I asked CMA if they have any legal authority on whether I am obligated to provide certified translations with the documents written in foreign language while responding to a first request for the production of documents.

On the issue of taxes and financial statements, I have relied on the following caselaw:

“While it is well-settled that ‘tax returns in the possession of the taxpayer are not immune to civil discovery,’ courts are cautious in ordering their production and have ordered such disclosure only upon satisfaction of a two-prong test: (1) relevance and (2) substantial need because the information is not otherwise readily available. (Citing *St. Regis Paper Co. v. United States*, 368 U.S. 208, 218-19 (1961)” *Sabatelli v. Allied Interstate, Inc.*, CV05-3205 (ARL) at 1 (E.D.N.Y. Sep. 13, 2006). The Court in *Sabatelli* went on to conclude: “While the defendants’ financial information is clearly relevant to the issue of punitive damages, the second prong of this test has not been satisfied. Here, the

information sought is otherwise readily available in that plaintiff may make inquiry during the depositions of these defendants as to this information. This deposition testimony should suffice to provide an adequate picture of defendants' financial status." Id. at 2.

MTL's Cross Motion to Compel

While conferring with Counsel for CMA on MTL's Request for Documents #6 and #7 (Exhibit "1"), Counsel for CMA as one of the objections again objected based on the Hague Convention. When I said that I believed that the Commission's Decision on Appeal specifically said that this was not a basis to withhold documents, Counsel for CMA disagreed. However, on page 8 of such Decision, the Commission said: "In any event, even without resort to Hague Convention procedures, CMA can still object to specific requests for documents as beyond the reach of permissible discovery under FMC rules."

Such attitude is not surprising given what Counsel for CMA keeps saying in their letters that accompany production: "CMA produces the documents appended hereto solely as a result of compulsion imposed by the FMC Order of October 30, 2023" and "CMA thus produces documents only under duress." (Exhibit "2" pp. 1, 4).

It is respectfully being submitted that the information sought in these requests is relevant to the main allegations in this case, namely that CMA has consistently acted unreasonably with respect to their policies or practices relating to demurrage (e.g. delaying loading containers for several months and then trying to collect demurrage for such delay, which was caused by CMA) to CMA's benefit by way of collecting income from these demurrage charges.

Dated: December 27, 2023


Garry Pogil (Attorney for the Complainant)